

DISCOVERY FILING INSTRUCTIONS AND PROCEDURES

PIGORS V. WATSON -- MUSKEGON COUNTY CIRCUIT COURT

CASE NO. [TO BE ASSIGNED] | RELATED: 2024-001507-DC

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1. OVERVIEW AND TIMELINE

Discovery Period

- * Discovery opens upon filing of the Complaint and service on all Defendants
- * Standard discovery period: 6 months from filing (MCR 2.301(B))
- * Discovery cutoff is typically set by Scheduling Order
- * Request extension early if needed -- file Motion to Extend Discovery per MCR 2.301(B)(3)

Recommended Discovery Sequence

Week 1-2: Initial Discovery Salvo

1. Serve Interrogatories on all Defendants (28-day response deadline)
2. Serve Requests for Production on all Defendants (28-day response deadline)
3. Serve Requests for Admission on all Defendants (28-day response deadline)
4. Issue litigation hold letters to all parties and anticipated third-party subpoena recipients

Week 2-4: Third-Party Subpoenas

5. File and serve subpoenas duces tecum to third parties (CPS, FOC, schools, medical, police)
6. File Motion for Qualified Protective Order for medical/mental health records
7. File Motion for Court Order for educational records

Week 4-8: Review and Depositions

8. Review all discovery responses and third-party documents
9. Prepare deposition outlines based on discovery responses

10. Schedule and take depositions (start with CRITICAL priority witnesses)

Week 8-12: Follow-Up

11. Serve supplemental interrogatories based on deposition testimony

12. File Motions to Compel if any discovery is incomplete or inadequate

13. Take remaining depositions

Week 12-16: Expert Discovery

14. Retain and disclose expert witnesses if needed (custody evaluator, damages expert)

15. Exchange expert reports per scheduling order

16. Take/defend expert depositions

2. INTERROGATORIES -- MCR 2.309

Filing Requirements

* **Limit:** No more than 20 interrogatories per party (including subparts) per MCR 2.309(A)(2), unless the court grants leave for additional interrogatories

* **Service:** Serve on each Defendant separately; do NOT file with the court (MCR 2.302(F))

* **Response deadline:** 28 days after service

* **Signature:** Answers must be signed under oath by the party (MCR 2.309(A)(4))

* **Objections:** Must be signed by attorney or party and state reasons with specificity

Procedure

1. Prepare separate interrogatory set for each Defendant (from discovery_interrogatories.md)
2. Include the standard instructions and definitions
3. Serve by first-class mail (add 3 days to deadline per MCR 2.107(C)(3)) or personal service
4. Prepare proof of service (MCR 2.104)
5. Calendar the response deadline (28 days + 3 if mailed)
6. If response is inadequate, send meet-and-confer letter before filing Motion to Compel

If Defendants Fail to Respond

- * Wait until deadline passes
- * Send written demand giving 7 additional days
- * If still no response, file Motion to Compel (MCR 2.313(A)) with:
 - Certification of good faith effort to resolve (MCR 2.313(A)(5))
 - Request for costs and attorney fees (MCR 2.313(A)(6))
 - Request for sanctions if appropriate (MCR 2.313(B))

3. REQUESTS FOR PRODUCTION -- MCR 2.310

Filing Requirements

- * **No limit** on number of requests
- * **Service:** Serve on each Defendant; do NOT file with court
- * **Response deadline:** 28 days after service
- * **Production format:** Documents produced as kept in ordinary course of business OR organized by category per MCR 2.310(B)(2)
- * **ESI:** Request production in native format with metadata

Procedure

1. Serve RFPD on each Defendant (from discovery_document_requests.md)
2. Include ESI preservation notice
3. Specify inspection location and method
4. Calendar response deadline
5. Review production for completeness
6. Send deficiency letter if production is incomplete
7. File Motion to Compel if necessary

4. REQUESTS FOR ADMISSION -- MCR 2.312

Filing Requirements

- * **No limit** on number of requests
- * **Service:** Serve on each Defendant; do NOT file with court

- * **Response deadline:** 28 days after service
- * **KEY RULE:** Failure to respond = ADMITTED (MCR 2.312(B)(1))
- * **Withdrawal:** Admitted matters can only be withdrawn by motion showing (1) presentation of the merits will be aided and (2) the requesting party will not be prejudiced (MCR 2.312(D))

Strategic Value

- * RFAs that go unanswered are **deemed admitted** and are conclusive for trial
- * Even if answered, denials become impeachment material if evidence contradicts
- * If a matter is denied and later proven true, seek costs under MCR 2.312(E)
- * Use to establish foundational facts, simplify trial, and narrow issues

5. DEPOSITIONS -- MCR 2.306

Notice Requirements

- * **Notice period:** Reasonable notice; 21 days is standard practice
- * **Location:** Michigan depositions must be taken within the county of the witness's residence or employment, or within 50 miles of the place of trial
- * **Duration:** Maximum 7 hours/day per deponent (MCR 2.306(A)(5))
- * **Number:** No limit on party depositions; 10 non-party depositions per side (MCR 2.306(A)(3))
- * **Recording:** Stenographic by default; audio/video on notice (MCR 2.306(C))

Deposition Procedure

1. File Notice of Deposition (from discovery_deposition_notices.md)
2. For non-parties, serve subpoena with notice (MCR 2.305)
3. Arrange court reporter (Plaintiff responsible for cost as noticing party)
4. Prepare deposition outline organized by topic
5. Prepare exhibits (pre-marked)
6. Conduct deposition
7. Order transcript; review for corrections per MCR 2.306(E)

Cost Considerations for Pro Se Litigant

- * Court reporter: approximately \$3-5/page for transcript
- * Video recording: approximately \$300-500/half day
- * Witness fees: \$12/day + \$0.10/mile (MCL 600.2552)
- * Consider seeking fee waiver due to indigency if applicable
- * Consider using audio recording only (cheaper) with court permission

6. SUBPOENAS -- MCR 2.305, MCR 2.506

For Non-Party Document Production (MCR 2.305)

1. Prepare subpoena duces tecum using MC 11 form

2. Request issuance from the Circuit Court Clerk
3. Serve personally on custodian of records with witness fee (\$12 + mileage)
4. Allow 14 days for compliance
5. Serve copy of subpoena on all parties

Special Procedures

- * **Medical records (HIPAA):** File Motion for Qualified Protective Order first
- * **Educational records (FERPA):** File Motion for Court Order; assert parental rights
- * **Law enforcement records:** May require FOIA request in addition to subpoena
- * **CPS records:** MCL 722.627 governs disclosure; court order may be required

7. DISCOVERY MOTIONS

Motion to Compel (MCR 2.313(A))

- * File when discovery responses are inadequate, incomplete, or not provided
- * Must include certification of good-faith effort to resolve without court intervention
- * Court SHALL award reasonable expenses (including attorney fees) to the prevailing party unless opposition was substantially justified

Motion for Protective Order (MCR 2.302(C))

- * Use to protect sensitive information (children's identities, medical records)
- * Request sealing of documents containing children's information

Motion for Sanctions (MCR 2.313(B))

- * Available when party fails to comply with discovery order
- * Sanctions include: striking pleadings, prohibiting evidence, default judgment, contempt
- * Request proportional sanctions based on severity of non-compliance

8. ENFORCEMENT AND SANCTIONS

Escalation Ladder

1. **Informal demand:** Letter requesting compliance within 7 days
2. **Meet and confer:** Document good-faith attempt to resolve
3. **Motion to Compel:** File with court; request costs
4. **Motion for Sanctions:** If court order violated; request adverse inference or default
5. **Contempt:** For willful disobedience of court order

Spoliation

- * If Defendants destroy evidence after receiving litigation hold notice:
 - File Motion for Adverse Inference Instruction
 - Request sanctions under MCR 2.313(B)(2)(c)
 - Cite Brenner v Kolk, 226 Mich App 149 (1997)

9. FILING CHECKLIST

Before Filing Discovery

- * ☐ Complaint filed and served on all Defendants
- * ☐ Proof of service filed with court
- * ☐ Defendants' answer deadline passed or answers received
- * ☐ Scheduling conference held (or scheduling order entered)

Discovery Documents to Serve (NOT file with court)

- * ☐ Interrogatories (per Defendant) -- discovery_interrogatories.md
- * ☐ Requests for Production (per Defendant) -- discovery_document_requests.md
- * ☐ Requests for Admission (per Defendant) -- discovery_requests_for_admission.md
- * ☐ Deposition Notices -- discovery_deposition_notices.md
- * ☐ Litigation Hold Letters to all parties

Documents to FILE with Court

- * ☐ Subpoenas duces tecum (for third parties) -- from Clerk
- * ☐ Motion for Qualified Protective Order (medical records)
- * ☐ Motion for Court Order (educational records)
- * ☐ Proofs of Service for all discovery
- * ☐ Any Motions to Compel (if needed)

Calendar Deadlines

- * [] 28-day response deadlines for each discovery type
- * [] 14-day compliance deadline for subpoenas
- * [] 21-day notice period for depositions
- * [] Discovery cutoff date (per scheduling order)
- * [] Expert disclosure deadline (per scheduling order)

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Discovery Stack generated from litigation_context.db analysis

Database contains: 14 adversaries, 2512 conspiracy timeline entries, 14338 perjury compilation entries